

HOUSE No. 1434

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the public higher education contingent faculty reform pilot program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/16/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/23/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/11/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/1/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/13/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/31/2025</i>

HOUSE No. 1434

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 1434) of Carmine Lawrence Gentile and others for legislation to establish a public higher education contingent faculty reform pilot program. Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the public higher education contingent faculty reform pilot program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 15A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following section:-

3 Section 45. (a) There shall be established a faculty advancement pilot program to
4 evaluate strategies for improving contingent faculty working conditions and career pathways at
5 public institutions of higher education.

6 (b) For purposes of this section, the following words shall have the following
7 meanings:-

8 "Contingent faculty member", an instructor at a public institution of higher education
9 who: (i) teaches at least 2 courses per academic year; (ii) is compensated on a per-course basis;
10 and (iii) is not in a tenure-track position.

"Pilot institution", a public institution of higher education selected to participate in the pilot program established by this section.

"Program", the faculty advancement pilot program established pursuant to subsection (a).

(c) The board shall select 3 pilot institutions through a competitive application process, including:

(1) 1 community college;

(2) 1 state university; and

(3) 1 campus of the University of Massachusetts.

(d) Each pilot institution shall test specific reforms including:

(1) Career Advancement Framework:

(i) Creation of two advancement tiers for contingent faculty;

(ii) Clear criteria for movement between tiers;

(iii) Professional development opportunities;

(iv) Internal pathways to full-time positions.

(2) Working Conditions Improvements:

(i) Earlier course assignments when feasible;

(ii) Shared office space for student meetings;

(iii) Access to departmental resources;

- 29 (iv) Inclusion in departmental communication.
- 30 (3) Limited Benefit Testing:
- 31 (i) Pro-rated health insurance access for faculty teaching 50% or more of full-time
32 load;
- 33 (ii) Professional development funding;
- 34 (iii) Technology access support.
- 35 (e) There shall be established a pilot program oversight committee consisting of:
- 36 (1) The commissioner of higher education or designee, who shall serve as chair;
- 37 (2) 1 representative from each pilot institution;
- 38 (3) 3 undergraduate student members, appointed by the board;
- 39 (4) 3 contingent faculty members, appointed by the board;
- 40 (5) The State Auditor or designee;
- 41 (6) 1 representative of the Public Higher Education Network of Massachusetts;
- 42 (7) 1 representative of the American Federation of Teachers;
- 43 (8) 1 representative of the Massachusetts Teachers Association;
- 44 (9) 1 member with expertise in higher education employment appointed by the
45 commissioner of higher education.
- 46 (f) The oversight committee shall:

- 47 (1) Monitor implementation costs and feasibility;
- 48 (2) Evaluate specific metrics including:
- 49 (i) Faculty retention and satisfaction;
- 50 (ii) Administrative efficiency;
- 51 (iii) Educational continuity;
- 52 (iv) Cost implications;
- 53 (v) Implementation challenges.
- 54 (3) Submit annual reports to the secretary of education, commissioner of higher
55 education, and the House and Senate chairs of joint committee on higher education analyzing:
- 56 (i) Program effectiveness;
- 57 (ii) Scalability considerations;
- 58 (iii) Budget impacts;
- 59 (iv) Recommended modifications.
- 60 (g) Subject to appropriation, there shall be established the Faculty Advancement Pilot
61 Fund:
- 62 (1) Initial funding not to exceed \$2,000,000 annually;
- 63 (2) Distributed through matching grants to pilot institutions;
- 64 (3) Used specifically for:

- 65 (i) Program administration;
- 66 (ii) Direct faculty support;
- 67 (iii) Data collection and evaluation.
- 68 (h) Pilot institutions shall:
 - 69 (1) Provide matching funds of at least 25%;
 - 70 (2) Submit detailed expenditure reports;
 - 71 (3) Participate in program evaluation;
 - 72 (4) Share implementation findings.

73 SECTION 2. The board shall:

- 74 (a) Promulgate regulations within 180 days of passage;
- 75 (b) Select pilot institutions through competitive process;
- 76 (c) Begin implementation by July 1, 2025;
- 77 (d) Submit preliminary report by July 1, 2026;
- 78 (e) Submit final recommendations by December 31, 2027.

79 SECTION 3. This act shall take effect upon passage and shall expire on June 30, 2028.